

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SOUTH AFRICA

Complete Community Opposition How-To

A practical manual for customary communities, township residents, small farmers, and fishing communities facing a mine, a coal or gas plant, a heavy-mineral-sands operation, or the power and water infrastructure that serves them. South Africa has one of the strongest rights-based environmental legal frameworks in the world — and a documented history of communities using it to win.

INTRODUCTION & FRAMEWORK

Hold onto one fact before anything else, because it's true and it's South African: **a small rural community on the Wild Coast took on a mining company and its government backers and won a court ruling that they cannot be mined without their consent — not merely their consultation, but their free, prior, and informed consent.**

That's the record of **Xolobeni**. When an Australian-listed miner sought a right to dig titanium and other heavy minerals from the dunes of the **Amadiba** community's ancestral land in the Eastern Cape, the community — organised as the **Amadiba Crisis Committee** — resisted for years. In November 2018, in *Balení and Others v Minister of Mineral Resources*, the High Court in Pretoria ruled in their favour: the community holds informal rights to their land under the **Interim Protection of Informal Land Rights Act (IPILRA)**; granting a mining right would "deprive" them of those rights; and under that Act, such a deprivation requires the community's **consent**. So the Minister could not lawfully grant the mining right without it. The government had argued that because the State owns all minerals and the mining law requires only that communities be "consulted," the community had no right to refuse. The court rejected that — and the Constitutional Court, in a parallel case around the same time, affirmed the same consent principle. A community of a few hundred subsistence households had established, in South African law, that a community with customary land rights can say **no** to a mine.

Underneath both truths is the framework this guide will help you use. South Africa's **Constitution** guarantees everyone the right to an environment not harmful to their health or well-being (**section 24**). Its framework environmental law requires **environmental authorisation with genuine public participation**, and lets **any person litigate in the public interest** to protect the environment. Its **IPILRA** — the Interim Protection of Informal Land Rights Act — requires the **consent** of communities before they lose customary land, the very lever that won Xolobeni. It has a strong access-to-information law and independent courts up to a **Constitutional Court**; protest, petition, and litigation are lawful, backed by a vigorous environmental-justice movement and free press. But these tools have grave limits, and this guide states them plainly, because the victory was hard-won, remains under pressure, and the struggle cost a life. The company divided the community with inducements and co-opted some leaders; the fight took years; a later law on traditional leadership has raised fears that traditional authorities might purport to consent on a community's behalf; and, most gravely, the chairperson of the Amadiba Crisis Committee, **Sikhosiphi "Bazooka" Rhadebe, was murdered in 2016**. South Africa shows both what a determined community and its remarkable law can achieve — a mine held off by the right to consent, a coal plant's authorisation set aside for ignoring the climate — and how dangerous and drawn-out the fight can be when powerful mining

and industrial interests, and sometimes the state, back the project.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of decisions and dependencies, and a chain breaks at its weakest link. A large South African project needs an **environmental authorisation** under the framework environmental law, granted only after genuine public participation; a mine needs a **mining right** and, on customary land, the community's **consent**; it depends on **water-use** and other licences; it must respect the constitutional environmental right any person can enforce; and it must survive the courts, up to the Constitutional Court. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's a mine on customary land, you have South Africa's strongest shield** — the right to consent under IPILRA, the Xolobeni lever.
- **If the authorisation is flawed or the participation was hollow — including on the climate impacts — the courts genuinely bite** (a coal plant's authorisation was set aside for ignoring the climate).
- **If powerful interests and sometimes the state back the project, it's dangerous and drawn-out** — protect your people first, expect division and inducements, and be ready for years.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the participation, public-interest standing, consent, the climate ground, access to information — and **run every front at once**: the documents, the participation, the courts, the movement, the press. That's how Xolobeni was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **environmental authorisation** under the framework environmental law, issued by the competent environmental authority (provincial or national). A mine also needs a **mining right** from the mineral-resources department — and, on customary land, the community's consent. **Water-use licences** come from the water department. On customary land, the **community and its rights under IPILRA** are decisive. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The application and public participation. The developer applies; there's a mandatory **public-participation** process on the environmental impact assessment, and interested and affected parties register and comment. *Your opening — and it arms every later step:* register as an interested and affected party, and file substantive comments. This builds the record a court later reads.

The authorisation and the mining right. The authority grants or refuses; the mineral department grants the mining right. *Your opening:* a flawed authorisation, or a mining right granted on customary land without consent, can be challenged.

Internal appeal, then the courts. There's an **internal appeal** to the relevant Minister or MEC — a tight window, so check it at once — and then **judicial review** in the courts. *Your opening:* both.

Construction and operation. *Your opening:* breaches of the authorisation's conditions.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure, and many miners are foreign-listed and reputation-sensitive. **What it still needs** — the authorisation not final or under review, the mining right or water licence not granted, consent not obtained, financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and development-finance institutions with their own environmental and social standards.

Who's Supposed to Be Watching

Each is an ally or an arena. The **environmental authority** runs the authorisation and can be pressed. The **Minister/MEC** hears internal appeals. The **courts** — up to the **Constitutional Court** — review authorisations and mining rights and enforce the section 24 right, with any person able to litigate in the public interest. The **South African Human Rights Commission** takes rights complaints, including threats to defenders. The **Public Protector** and the **Auditor-General** examine official conduct and public money. And South Africa's **strong environmental-justice organisations, public-interest lawyers, and a free press** are the forces that reach furthest — the combination that carried Xolobeni.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether customary-land consent is engaged, whether the authorisation or participation was flawed, and how powerful and determined the backers are.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Register + comment in participation	15–35%	during authorisation	low	On record; conditions or a redo
Internal appeal (Minister/MEC)	20–45%	months	low	Authorisation set aside or conditioned
Judicial review in the courts	30–55%	1–3 yr	low–mod	Authorisation/right reviewed and set aside
Customary-land consent (IPILRA)	30–55%	varies	low–mod	Mine blocked without consent (Xolobeni)
Climate / section 24 grounds	25–50%	1–3 yr	low–mod	Authorisation set aside (as for a coal plant)
Movement + national/international media	25–50%	months–yr	low	Political cost; project reconsidered
Everything together (customary land, world watching)	40–65%	1–4 yr	low–mod	Blocked, set aside, delayed, changed

What you do	Roughly works	How long	Cost	What "works" means
Everything together (state-backed, clean process)	20–40%	1–4 yr	low–mod	Delayed, conditioned, exposed

The levers that move the needle most are **customary-land consent** and **judicial review** (including on climate and the section 24 right), backed by the movement and the press. Xolobeni shows the ceiling — a community's right to say no. The honest floor is a state-backed project with a clean process and firm backing, where a win often looks like delay, conditions, and exposure — and where the fight can be dangerous.

On cost and safety: registering, commenting, and organising are cheap, and public-interest law firms — the Centre for Environmental Rights, the Legal Resources Centre, and others — take environmental cases, with any person able to litigate in the public interest. But this is dangerous ground: defenders have been killed. Protect the vulnerable, document safely, and route risk through lawyers and institutions.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this authorisation, this flaw, this right — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over customary land, a coastline and its fisheries, a river, grazing commonage, a protected area, a township's air. **Customary-land rights are South Africa's strongest shield**, so this map is your most important document.
- 3. What stage is it at, and what's the next deadline?** Is the public-participation process open? Has the authorisation or mining right been granted (starting a tight internal-appeal clock)? These openings are time-bound.
- 4. What does it still need that it lacks?** An authorisation not final, a mining right or water licence not granted, consent not obtained, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** The community and its structures, neighbours, the environmental-justice organisations. Xolobeni organised as a crisis committee.

What this looks like in real life. A community learns its ancestral coastline has been licensed to a mining company through a distant office, with a public meeting few could reach. The five questions yield: a foreign-listed miner behind it; a site on customary land (the shield); a participation process running; a project still needing consent and its authorisation; and a coalition of the community's structures and a public-interest law firm. That's the Xolobeni pattern — assert consent, build the case, and protect the people.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the environmental impact assessment, the authorisation and its conditions, the mining-right and water-licence applications, the participation record. South Africa's strong access-to-information law forces out what isn't public. Then read

the assessment hard for flaws — an understated impact, an ignored alternative, the **climate impacts skipped** (a proven ground), a participation that never genuinely reached the community.

Layer two: the ground truth. Dated, located photographs and video of the site, the coast, the land, the water — baseline images before any damage most of all — and, carefully and with consent, the testimony of affected community members.

Layer three: the map of rights. Lay the project over customary land, protected areas, and the fisheries or water it touches, so each shield is visible. Walking in with the assessment, the conditions, and that map is what makes the authority, the courts, and a public-interest lawyer take you seriously.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The assessment, the authorisation and conditions, the mining-right and water applications, the participation record** — from the authorities; force out the rest under the access-to-information law (8A).
- **Customary-land and community records** — from the community's own structures.
- **Ownership and financing** — company records, and lender/development-finance documents.
- **The rights map** — customary land, protected areas, and fisheries/water, laid over the site.
- **Dated site evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Xolobeni's crisis committee held a community together against inducements and worse. Build your coalition in four moves — and safely.

Start with the community's own structures and a tight core. Where customary rights apply, the community and its legitimate structures are both the heart of the fight and the rights-holders in law. Build around them, with the families most affected and a few trusted organisers.

Guard against division. Expect the company to offer inducements and try to co-opt leaders — this is how Xolobeni was pressured. Keep decisions transparent and collective, and beware anyone who purports to consent on the community's behalf.

Bring in the allies and experts — early. Reach the **environmental-justice organisations** (the Centre for Environmental Rights, the Legal Resources Centre, groundWork, Earthlife Africa) and the public-interest lawyers who ran cases like Xolobeni and the coal-plant climate case. Any person can litigate in the public interest, so a supported community can bring a strong case.

Build to last, and safely. These fights run for years and can turn dangerous. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial, emotional, and physical risks. Take threats seriously — defenders have been killed — protect the vulnerable, and route danger through lawyers, the Human Rights Commission, and the press.

STEP 4: LEGAL CHALLENGES, CONSENT & THE CONSTITUTION

Law is arguably South Africa's sharpest lever, because of a strong Constitution, courts that enforce it, and the right of any person to litigate for the environment.

Participate First — It Builds the Record

Everything downstream is stronger if you registered as an interested and affected party and filed substantive comments in the participation process. The courts review the authorisation on that record, so your comments are the raw material of the challenge.

Customary-Land Consent — the Xolobeni Lever

On customary land, the strongest ground is **consent**. Under **IPILRA**, a community with informal land rights cannot be deprived of them without consent, and a mining right is such a deprivation — so, as *Baleni* held and the Constitutional Court affirmed, a mine cannot lawfully proceed on customary land without the community's free, prior, and informed consent. Assert it clearly, through the community's legitimate structures, and beware anyone claiming to consent on the community's behalf.

Internal Appeal, Judicial Review, and the Section 24 Right

If the authorisation or mining right is granted, lodge the **internal appeal** to the Minister or MEC within its tight window, then bring **judicial review** in the courts. The grounds include a defective assessment, a hollow participation, and — a proven, powerful one — a **failure to assess the climate impacts**, on which a coal plant's authorisation was set aside. Behind it all stands **section 24** of the Constitution: any person can litigate in the public interest to protect the environment for present and future generations, all the way to the **Constitutional Court**.

The Honest Limits

Straight talk: the law is strong and has stopped mines and coal plants, but litigation is slow; powerful and sometimes state-backed interests are hard opponents; communities get divided and defenders threatened; and a court win on consent can still be contested through traditional-leadership manoeuvres. So use the strong tools — participation, consent, judicial review, the section 24 and climate grounds — but pair them with the movement and the press, protect your people, and count an authorisation set aside, a mine blocked for want of consent, delay, and conditions as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A right becomes a shield. Not "we don't want the mine" but *"this is our customary land; under IPILRA it cannot be mined without our consent, and we do not consent."*

A document becomes a legal flaw. *"The assessment never assessed the climate impacts — as with the coal plant, that makes the authorisation unlawful."*

Section 24 becomes a constitutional claim. *"This harms our right, and future generations' right, to an environment not harmful to health or well-being."*

The harm becomes a national and international story. *"An ancestral coastline a community has held since the early 1800s — for a mine they were never asked to consent to."*

Match it to the venue: the comments to the authority; the consent to the community's assertion and the courts; the climate flaw to judicial review; the human story to the press.

STEP 5: MEDIA STRATEGY

In South Africa, national and international attention is a real lever — and, where defenders are threatened, a protection. A free press and strong movements make the media front central.

Lead with people and place, not procedure. Not "the assessment was procedurally deficient" but "an ancestral coastline our people have held for two centuries — for a mine we were never asked to consent to." Use your strongest material: dated photographs, the map of the project over the customary land, the community's stand, and — carefully — human testimony.

Work several audiences at once. Local and national press build political pressure; the environmental-justice movement amplifies; international media reach the company's foreign investors. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can be used against you. And protect people — weigh what you publish and shield the vulnerable, because this fight has cost lives.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; and protect anyone at risk.

8A — Access-to-information request (to the authority).

Subject: Request for records — [project].

"Under the access-to-information law, we, residents of [place], request the environmental assessment, the authorisation and its conditions, the mining-right and water-licence applications, and the participation record for [project] at [location]. [Contact.]"

8B — Registering and commenting in the participation process.

Subject: Registration as an interested and affected party — [project].

"We, residents of [place], register as interested and affected parties and object to [project]: [the assessment ignores the climate impacts / our customary rights; the participation never genuinely reached us]. We ask that these be addressed and the authorisation refused. [Attach evidence.]"

8C — Asserting customary-land consent (IPILRA).

Subject: Customary rights and consent — [project] at [location].

"The land affected by [project] is our customary land, in which we hold informal rights protected by IPILRA. A mining right would deprive us of those rights, which requires our consent. We do not consent, and we call for the right to be refused. Any purported consent not given by the community itself is invalid. [Contact.]"

8D — To a public-interest law firm / environmental-justice organisation.

Subject: Request for support — [project] at [location].

"Our community faces [project] on [customary / protected] land. We've gathered [the assessment, the authorisation, photographs, our land records] and believe there are grounds on consent, the climate impacts, and section 24. We ask for your help and to work as partners. [Contact and evidence summary.]"

8E — To a financier or development-finance institution.

Subject: Environmental, social, and legal risk in [project].

"We understand your institution may be [financing] [project] at [location], which [proceeds on customary land without consent / faces active legal challenge]. We ask you to weigh this against your own environmental and social standards. [Contact and evidence summary.]"

8F — Letter to the press.

Subject: [Community] moves to protect [coast / land / water] from [project].

"For generations the people of [place] have lived from [the coast / the land] at [location]. Now [project], by [company], threatens to destroy it — and we were never asked to consent. We can provide photographs, documents, a map and — carefully — interviews. [Contact.]"

8G — Reporting threats (to the Human Rights Commission / police).

Subject: Threats to community members opposing [project].

"Members of our community peacefully opposing [project] have faced [threats / intimidation]. We ask you to investigate and to protect those at risk. [Contact and details.]"

8H — Rallying the community (safely).

Subject: We can protect our land — here's how.

"[Project] threatens [our land / coast / water]. A community on the Wild Coast won the right to say no to a mine — that is Xolobeni, and it is South African. With our consent rights, the courts, section 24, and the movement behind us, we have a real chance. Please join us — carefully, protecting one another, and beware anyone who claims to consent on our behalf. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

- 1. Nail down the project and its footprint, and look for the consent shield.** If it's a mine on customary land, your consent under IPILRA is your strongest lever.
- 2. Register and comment in the participation process (8B), and assert consent (8C).**
- 3. Request the records (8A), and read the assessment — especially for the climate impacts.**
- 4. Photograph everything, with dates and places, safely; keep decisions collective to resist division.**
- 5. Reach a public-interest law firm fast (8D).** Any person can litigate in the public interest; watch the tight internal-appeal window.
- 6. Go public and protect your people (8F/8G).** National and international attention pressures the institutions and shields defenders.

Even lean, those six use your rights, assert the shield, build the record, and put a lawyer and a movement behind you.

WHEN THE SYSTEM IS TILTED

South Africa's tools are real, but the field is often tilted, and you must plan for it.

When powerful mining interests back the project. Expect inducements, co-option, and pressure. Don't fold: assert consent through the community's own structures, use the courts, keep decisions collective and transparent, and make the backers' conduct a public cost.

When the state backs it. A determined government is a hard opponent. Use the section 24 right, judicial review, and the climate ground, keep the movement alive, and use national and international attention.

When traditional-leadership law is used against you. Be alert to anyone purporting to consent on the community's behalf; consent must come from the community itself, through legitimate, transparent processes.

When defenders are threatened. This is the gravest tilt — a leader was murdered. Take every threat seriously, protect the vulnerable, report to the Human Rights Commission and the police, and use the press as a shield.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

South Africa has serious, documented problems with the capture of licences and public projects, so this matters.

How to spot it. Authorisations against the technical evidence; a participation engineered to exclude the affected; mining rights or contracts steered to the connected; revolving doors between industry and the state; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **courts** can set aside a tainted authorisation or right. The **Public Protector**, the **Auditor-General**, and the anti-corruption bodies examine official conduct and public money. The **Human Rights Commission** takes rights complaints. And South Africa's **investigative press** has repeatedly exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the proper bodies and trusted journalists rather than making accusations you can't back. Protect insiders and witnesses. Pair the exposure with the legal challenge and the public campaign, so the impropriety and the pressure land together.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the consent shield aims it; organising builds the muscle; the courts press the case; the media raises the cost and protects your people. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any customary-land rights; register and comment in the participation process; assert consent; request the records; photograph the baseline safely; reach a public-interest law firm; build your core through the community's structures.

In the thick of it (months–years): lodge the internal appeal in its tight window, then bring judicial review on consent, the climate impacts, and section 24; deepen the coalition and the expert critique; open the media

front — and keep decisions collective to resist division.

The long haul (years): carry the case through the courts to the Constitutional Court if needed; keep the movement and the attention alive; hold the line for a mine blocked for want of consent, an authorisation set aside, delay, or an outright stop — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in South Africa can be done — a community of a few hundred households won the right to say no to a mine on their ancestral land — and the same story is honest about the price: years of pressure, a divided community, and a leader murdered. Hold both. South Africa's tools are real and, in parts, unusually strong: a constitutional environmental right any person can enforce; a consent requirement for customary land; a proven climate ground; a strong access-to-information law; and independent courts up to a Constitutional Court. And the constraints are real: powerful and sometimes state-backed interests, inducements and division, drawn-out fights, and genuine danger to defenders.

Here's the discipline that wins. Find the consent shield and the flaw in the assessment — especially the climate impacts — and pry loose the record. Register and comment in the participation process. Assert your community's consent under IPILRA, through your own legitimate structures. Lodge the internal appeal in its tight window, then bring judicial review on consent, the climate, and section 24. Build your coalition, carry the story to the nation and the world, protect your people, and keep decisions collective against division. Count a mine blocked for want of consent, an authorisation set aside, delay, and conditions as wins alongside a clean stop. That's what Xolobeni did — the right to say no, the courts, and a community that would not be divided. So can you.